

Court No. - 46

Case :- WRIT - C No. - 19791 of 2020

Petitioner :- Mangalam Cold Storage And Allied Industries And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Swapnil Kumar, Sudhanshu Kumar

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Heard Sri Swapnil Kumar, learned counsel for the petitioners and Sri Rakesh Kumar Tripathi, Advocate holding brief of Sri Narendra Kumar Tiwari, learned counsel appearing for respondent no.2 and learned Standing Counsel on behalf of respondent Nos. 1 and 3.

The instant petition has been filed seeking following relief:

- a) To quash the impugned recovery certificate dated 27.12.2019 issued by Executive Engineer/ respondent No.4 and recovery citation dated 20.01.2020 issued by respondent no.3.
- b) To issue an order or direction to respondent no.4 to issue revised bill of the electricity consumption of the petitioner.
- c) To issue a writ, order or direction in the nature of mandamus restraining the respondents from realizing any amount from the petitioner in pursuance to recovery citation dated 20.01.2020.

At the very outset, learned counsel for the petitioner has submitted that he may be given an opportunity to approach respondent no.4- Executive Engineer under Clause 6.5 of U.P. Electricity Supply Code, 2005 by means of a representation which may be considered and decided expeditiously in accordance with law.

Learned counsel for the respondents has no objection to it.

Considering the facts and circumstances of the case, without expressing any opinion on the merits of the case, the present petition is disposed of finally with liberty to the petitioners to approach respondent no.4 within two weeks from today along with the copy of fresh representation. The said respondent shall consider the representation of the petitioner and shall pass appropriate orders in accordance with law within four weeks thereafter. If the petitioner fails to approach respondent no.4 within stipulated period of time, he is not liable to get the benefit of this order.

With the aforesaid observation, the petition is disposed of.

Order Date :- 7.12.2020

C. MANI